



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

JUN 4 - 2001

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12422

JUN 04 2001

EXPIRATION DATE: **May 21, 2003**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Connecticut Yankee Atomic Power Company (CYAPC)
East Hampton, CT
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a pressurizer from the Haddam Neck Plant in East Hampton, Connecticut to the Envirocare of Utah Low Level Radioactive Waste Management Facility in Clive, Utah. This exemption authorizes the pressurizer to be classified as a surface contaminated object, class II (SCO-II), and transported as a non-specification package under a transport plan which provides an equivalent level of safety to the packages and procedures specified in the Hazardous Materials Regulations (HMR). This exemption provides no relief from HMR other than as specifically stated herein.
 - b. The safety analysis performed in the development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. Section 173.403 in so far as the fixed and non-fixed contamination levels for SCO-II may be exceeded on the pressurizer specified in the exemption application.
 - b. Section 173.427(a) in so far as the pressurizer, SCO-II, may be transported as a non-specification package under a specified transport plan providing equivalent safety to the packages and procedures required by the HMR.
5. BASIS: This exemption is based on the applications of CYAPC dated January 18, 2000 and March 12, 2001 which were submitted in accordance with § 107.105 and the public proceeding thereon.

JUN 4 - 2001

Continuation of DOT-E 12422

Page 2

JUN 04 2001

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, surface contaminated object	Class 7	UN2913	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) Under the provisions of this exemption, the pressurizer is considered to be a non-specification package which, when transported in accordance with the CYAPC transport plan, provides an equivalent level of safety to the packaging authorized under the HMR.

(2) The contamination levels and radionuclides present on the pressurizer must be consistent with the levels identified in CYAPC's application and supporting technical data.

(3) To maximize radiation protection, closures must be welded over surge, spray and safety nozzles and other penetrations. Prior to transport, a fixative must be applied to ensure tha all external contamination is fixed.

b. OPERATIONAL CONTROLS -

(1) The pressurizer must be consigned as exclusive use under the provisions of § 173.427(a)(6).

(2) All controls, provisions and routes specified in CYAPC's "Transportation and Emergency Response Plan for Connecticut Yankee Power Company, Haddam Nuclear Plant Pressurizer Removal and Disposal Project, Revision 0" must be followed.

c. COMMUNICATIONS -

(1) The package must be plainly and durably marked "DOT-E 12422" in accordance with § 172.301(c).

JUN 4 - 2001

Continuation of DOT-E 12422

Page 3

JUN 04 2001

(2) The package must be marked, labeled and placarded in accordance with the provisions of § 173.427(a)(6) for SCO required to be shipped as exclusive use.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and rail freight.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

JUN 4 - 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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PO: RBOYLE